

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA FAMILY LAW DIVISION

IN RE: THE MARRIAGE OF:

SARAH HANSON, Petitioner/Wife,

and

CHRISTOPHER HANSON, Respondent/Husband.

Case No.: 24-DR-1150 Division: A

RESPONDENT'S NOTICE OF INVOCATION OF CONSTITUTIONAL RIGHTS,
OBJECTION TO PROCEEDING, AND DEMAND FOR WRITTEN FINDINGS OF
FACT REGARDING STRUCTURAL CONFLICT

Respondent, CHRISTOPHER HANSON, representing himself, hereby files this Gatekeeper Notice invoking his fundamental rights under the Fourteenth Amendment to the United States Constitution and Article I, Section 9 of the Florida Constitution. Respondent formally objects to this Court proceeding to the merits of the motions scheduled for the April 17, 2026, evidentiary hearing and demands written findings of fact regarding the existing structural conflicts of interest as to the core issues in dispute – between Respondent and Petitioner and Respondent and Judge Felix/13th Circuit Court. In support, Respondent states:

I. FORMAL REQUEST FOR JUDICIAL NOTICE

1. Pursuant to Florida Statutes § 90.202(6), Respondent formally requests that this Court take judicial notice of the active civil litigation styled Christopher Hanson v. Thirteenth Judicial Circuit Court, et al., Case No. 25-CA-010255 (Hillsborough County, Civil Division B).
2. The Court must take judicial notice of the indisputable fact that the presiding judge in this family law matter, the Honorable Matthew L. Felix, is an active, named Defendant/Respondent in Case No. 25-CA-010255.
3. Furthermore, the Court must take judicial notice that the Mandamus and Public Records lawsuit (25-CA-010255) arises directly from the Thirteenth Judicial Circuit's refusal to produce records—specifically including the April 4, 2025, hearing video and communications involving opposing counsel, Scott Davis—

- that are inextricably intertwined with the evidentiary matters currently pending in this family law case (24-DR-1150).
4. Respondent asks the Court to take Judicial notice of the documents recently filed in Case No. 010255 and attached below:
 - Motion for Summary Final Order, at p. 4-24
 - Motion for Sanctions and Immediate Writ, at p. 25-57
 5. The court will see that there are credible allegations of intentional concealment of public records directly relevant to issues pending before this court for two years.
 6. Respondent further asks the Court to consider the logical and invasive conflicts between the litigation pending against Judge Felix and the 13th Circuit and the litigation pending under Judge Felix and the 13th Circuit.

II. OBJECTION TO PROCEEDING ON THE MERITS

7. Respondent places this Court and opposing counsel on formal notice: Respondent objects to the commencement of any hearing on the substantive merits of the pending motions
8. In addition to the unresolved Appellate Stay (addressed in Respondent's April 14, 2026, Motion to Clarify Status of Stay Pending Appeal), this Court is constitutionally barred from exercising jurisdiction over Husband's family, children, and finances while simultaneously opposing Husband as a Defendant in parallel litigation.
9. A judge cannot lawfully sit in judgment of a litigant who is actively prosecuting them for constitutional violations in a related civil matter.

III. INVOCATION OF DUE PROCESS & DEMAND FOR FINDINGS OF FACT (THE CAPERTON STANDARD)

10. Respondent invokes his right to a fair and impartial tribunal under the Due Process Clause of the Fourteenth Amendment and Article I, Section 9 of the Florida Constitution.
11. While Florida Rule of General Practice and Judicial Administration 2.330 generally prohibits a judge from passing on the "truth of the facts" in a standard disqualification motion, this Notice invokes a higher constitutional standard: Structural Conflict.

12. The United States Supreme Court has established that due process is violated when the probability of actual bias on the part of the judge is unconstitutionally high. *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868, 876 (2009).
13. An objective, unconstitutional risk of bias exists when a judge is an active party-defendant in litigation brought by the litigant appearing before them.
14. To preserve Respondent's constitutional arguments for appellate review, this Court must act as a gatekeeper.
15. Before taking any evidence or hearing any argument on the substantive family law motions, this Court is required to enter written findings of fact and conclusions of law answering the following threshold jurisdictional questions:
 - Is Judge Matthew Felix currently a named Defendant in Case No. 25-CA-010255?
 - Does Case No. 25-CA-010255 involve allegations of records concealment directly related to Case No. 24-DR-1150?
 - As a matter of constitutional law, does an objective structural conflict exist under *Caperton* that deprives Respondent of his right to an impartial tribunal?

IV. CONCLUSION AND DEMAND

16. The Court cannot simply ignore the existence of Case No. 25-CA-010255. To proceed to the merits of Wife's retaliatory motions on April 17, 2026, without first issuing written findings of fact resolving this objective structural conflict constitutes a fundamental denial of due process and an intentional deprivation of meaningful appellate review.

WHEREFORE, Respondent demands that this Court take judicial notice of Case No. 25-CA-010255, halt the scheduled April 17, 2026, evidentiary hearing on the merits, and enter written findings of fact regarding the structural conflict of interest as required by the State and Federal Constitutions to allow for further appellate review.

Respectfully submitted this 16th day of April, 2026.

Chris Hanson

Christopher Hanson,

FL Bar #44094

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**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
CIVIL DIVISION**

**CHRISTOPHER HANSON, individually and
as attorney for himself and attorney/next
friend for his minor children,**

Plaintiff/Petitioner,

v.

Case No.: 25-CA-010255

Division: B

**THIRTEENTH JUDICIAL CIRCUIT COURT,
CHIEF JUDGE CHRISTOPHER C. SABELLA,
JUDGE KELLY AYERS, JUDGE MATTHEW
FELIX, COURT ADMINISTRATOR GINA
JUSTICE, MIKE MOORE, AND CLERK OF
COURT VICTOR CRIST,**

Defendants/Respondents.

**PLAINTIFF'S MOTION FOR SUMMARY FINAL ORDER
COMPELLING PRODUCTION OF PUBLIC RECORDS AND
ENTRY OF PEREMPTORY WRIT OF MANDAMUS
WITH INCORPORATED MEMORANDUM OF LAW**

Plaintiff, CHRISTOPHER HANSON, pursuant to Florida Rule of Civil Procedure 1.510 (as amended to conform to the federal *Celotex* standard), Florida Rule of Civil Procedure 1.630, Article I, Section 24 of the Florida Constitution, Chapter 119, Florida Statutes, and Florida Rule of General Practice and Judicial Administration 2.420, moves this Honorable Court for entry of a Summary Final Order and Peremptory Writ of Mandamus compelling Defendants to produce all requested public records within forty-eight (48) hours. In support thereof, Plaintiff states as follows:

I. PROCEDURAL POSTURE AND PRIMA FACIE STATUS

This case has reached a posture where summary disposition is not only appropriate—it is compelled by the constitutional mandate for expedited resolution of public records disputes. Two separate judges have independently found that Plaintiff established a prima facie case for mandamus relief. Two separate defense groups have now appeared and filed their respective responses. Collectively, their submissions fail, as a matter of law, to rebut the constitutional presumption of public access which the 13th Circuit Court actors continue to violate. Plaintiff does not relitigate in this Motion the due-process and briefing-schedule concerns arising from the prior sua sponte orders. Those concerns are preserved in Plaintiff’s pending motions for rehearing on each of the relevant orders, which are incorporated here by reference and reserved for separate adjudication. This Motion addresses only whether, on the present record, Defendants have rebutted the prima facie case for mandamus relief for any of the public records sought.

The Defendants in this action divide into two distinct defense groups represented by separate counsel:

(a) The Judicial Defendants — the Thirteenth Judicial Circuit Court, Trial Court Administrator Gina Justice, Chief Judge Christopher C. Sabella, Judge Kelly Ayers, and Judge Matthew Felix — are represented by Senior Assistant Attorney General Jessica Schwieterman. The Judicial Defendants have filed three substantive responses: (i) Response in Opposition to the Amended Petition filed January 8, 2026 (Doc. 40); (ii) the contested January 28, 2026 filing (Doc. 55); and (iii) their operative Response to the Alternative Writ and Amended Petition, filed March 4, 2026 (Doc. 65), following Judge Coleman's February 17, 2026 Alternative Writ (Doc. 62). On April 1, 2026, the Judicial Defendants additionally filed a Motion for Protective Order to Stay Discovery (Doc. 72).

(b) The Clerk Defendant — Victor D. Crist, in his official capacity as Clerk of the Circuit Court for Hillsborough County — is separately represented by Jason L. Margolin and Keiana R. Wilkerson of Akerman LLP. The Clerk filed his Response to Alternative Writ and Amended Petition on February 23, 2026 (Doc. 63).

The four filings identified above, together with the Motion for Protective Order (Doc. 72), collectively represent the universe of defenses the Defendants have raised, for the 13th Circuit Court Defendants with respect to all of the materials sought. None of them—individually or collectively—creates a genuine dispute of material fact or establishes a legal basis for continued withholding of the requested records.

Under Florida Rule of Civil Procedure 1.630(e), a "[d]efendant must respond to the writ as provided in rule 1.140." Rule 1.140(a), in turn, affords a defendant 20 days to serve an answer "[u]nless a different time is prescribed in a statute of Florida." That qualifying clause is important here: §119.11(1), Florida Statutes, prescribes a different — and shorter — timeframe, commanding that "[w]henver an action is filed to enforce the provisions of this chapter, the court shall set an immediate hearing, giving the case priority over other pending cases." Read together, Rule 1.630(e), Rule 1.140(a), and §119.11(1) establish a 20-day response ceiling at most, with §119.11(1)'s "immediate hearing" mandate as the governing floor. Rule 1.090(b)(A) permits the court, for good cause, to extend a deadline "with or without motion or notice" provided the court acts before the original time expires; but the Rule requires an actual finding of good cause, and it does not authorize the wholesale vacatur of an existing alternative writ and the issuance of a new writ that effectively resets the response clock from scratch.

On January 13, 2026, Judge Frayman issued an Alternative Writ (Doc. 47), triggering the 20-day response period under Rule 1.630(e) and Rule 1.140(a). On February 17, 2026, Judge Coleman — over Plaintiff's objection, and without any finding of good cause for extending the original response deadline — vacated the Frayman writ entirely and issued a new Alternative Writ (Doc. 62), from which Defendants then had an additional 20-day response period running until March 4, 2026. The cumulative effect was to extend Defendants' response runway to approximately fifty days, in direct tension both with the single 20-day window provided by Rule 1.630(e)/1.140(a) and with the "immediate hearing" mandate of §119.11(1).

Plaintiff has preserved this objection throughout and does not relitigate it in this Motion although the additional time already granted Defendant is a factor in hearing the current motion on discovery and this one for summary final order. The latest Response to Plaintiff's petition for Writ was filed on March 4, 2026. (Doc. 65, Response to Amended Petition.) That response is now ripe for determination on the merits. As demonstrated below, it fails to carry Defendants' burden.

II. STATEMENT OF UNDISPUTED MATERIAL FACTS

The following facts are established by the record and are not genuinely disputed:

1. Between July 24, 2025, and October 14, 2025, Plaintiff submitted a series of formal public records requests to the Thirteenth Judicial Circuit, all addressed to "13th Judicial Circuit, Legal Department – Public Records, 800 E. Twiggs Street, Room 600, Tampa, FL 33602." The requests, attached to the initial Petition as Exhibits A–H (Doc. 6, beginning at page 1), sought the following categories of records:

- a. Email and text communications of Judge Kelly Ayers, her judicial assistant Dwauna Heyward, and all other Thirteenth Circuit representatives relating to the scheduling of or attendance at the December 13, 2024 hearing in Case No. 24-DR-001150 (Request dated July 24, 2025);
 - b. All visual and audio recordings of specified hearings in Case No. 24-DR-001150, **including the April 4, 2025 hearing** (Request dated July 24, 2025);
 - c. Email and text communications relating to the scheduling of or attendance at the January 9, 2025 hearing, including any communications concerning Attorney Scott Davis's non-attendance at that hearing (Request dated July 25, 2025);
 - d. Email and text communications of Judge Wendy J. DePaul and her judicial assistant relating to the April 28, 2025 Order of Recusal (Request dated August 14, 2025);
 - e. Additional records concerning the Guardian Ad Litem issue and Judge Ayers's request for a summary, and Husband's objection to excusing Attorney Davis from drafting the summary (Request dated September 4, 2025); and
 - f. Public Records Requests 6, 7, and 8, concerning specific communications regarding Judge Felix, Chief Judge Sabella, and Judge Ayers's disqualification records (submitted October 14, 2025). (Am. Pet. ¶14; Doc. 6, Exs. A–H at pp. 3–83.)
2. On August 21, 2025, the Thirteenth Judicial Circuit responded by making available approximately 226 double-sided pages/documents for a fee of \$0.15 per page. Defendants concede these pages consist of "emails from the dates December 3, 2024 to January 16, 2025." (Doc. 65, AG Response, §B.) The production did not include the requested video recordings, the recusal communications, nor the critical scheduling communications for the December 13, 2024 and January 9, 2025 hearings. Plaintiff paid the \$33.90 in copy fees, physically retrieved the double-sided paper copies from the Circuit Court, personally scanned each page to create an independent record, and then returned the paper copies to the custodian via pdf to contemporaneously memorialize the scanned record as the paper production from the Court.
 3. The August 21, 2025 production was not a good-faith response; it was a calculated document dump and bait-and-switch, designed to distract from the intentional concealment of the actual records Plaintiff seeks. The Court specifically and without notice, withheld the records most relevant to Plaintiff's underlying constitutional grievance—the Circuit's handling of Plaintiff's unavailability for the December 13, 2024 hearing and of attorney Scott Davis's non-attendance at the January 9, 2025 hearing.
 4. Plaintiff purchased a scanner for the specific purpose of handling the double-sided copies the Circuit produced, ultimately imaging **377 pages** of material—many of them duplicates. There is now a complete record of precisely what the Circuit actually produced and the glaring deficiencies that record reveals. There is a complete absence of any materials that would explain Judge Ayers's handling of Plaintiff's conflict with the December 13, 2024

hearing or her handling of Plaintiff's objection to Attorney Scott Davis's non-attendance at the January 9, 2025 hearing.

5. The Judicial Defendants were unquestionably aware of the relevance of those missing records: Judge Ayers was ultimately disqualified in the underlying family case, and her handling of the very hearings to which those records relate was central to the disqualification.
6. Plaintiff has continued in his efforts to escape the bias and misconduct that continues in the Family Law Case with oral arguments recently held on the constitutionality of the venue transfer denial in front of the Second District Court of Appeal on April 7, 2026. Judge Felix has refused to either transfer venue or make any findings of fact about the bias and misconduct/the basis for transfer requests.
7. Rather than produce the records, or even identify them on a privilege log as §119.07(1)(f), Florida Statutes, requires, Defendants chose instead to bury Plaintiff in 377 pages of unresponsive material and then characterize the production as complete. The failure to produce a privilege log, standing alone, constitutes a waiver of any claim of exemption and is independently sufficient to support the entry of a peremptory writ.
8. Defendants have not denied—in any of their four substantive filings (Docs. 40, 55, 63, 65) or in their April 1, 2026 Motion for Protective Order (Doc. 72)—the bait-and-switch and document-dumping tactics used to conceal the communications that would illuminate the constitutional defects in the Court's handling of the December 13, 2024 and January 9, 2025 hearings. Their silence in the face of a direct and repeated allegation is, under Florida's evidentiary rules, a tacit admission of that conduct. *See* §90.803(18)(b), Fla. Stat. (statement by party-opponent, adoptive admission by silence).
9. In Doc. 72, Defendants concede two facts that are dispositive of liability under Chapter 119. First, Defendants concede that responsive records exist and have not been produced to Plaintiff.
10. Second, Defendants offer as their sole justification the bare assertion that the unidentified records are "confidential" under unspecified provisions of "the Florida Statutes." (Doc. 72, Mot. for Protective Order, at 5.)
11. Defendants do not identify which records they are withholding, do not identify which statutory exemption they contend applies to any specific record, and have produced no privilege log. That combination — an admitted refusal to produce, coupled with a refusal to comply with the statutory procedure for asserting an exemption — is not a defense to Plaintiff's Chapter 119 claim.
12. It is a violation of it. Section 119.07(1)(f) provides that a custodian who contends that a record or part of a record is exempt "shall state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential." § 119.07(1)(f), Fla. Stat. Defendants have not done so.
13. Their own filing establishes both the withholding and the procedural default.

14. On September 8, 2025, Defendants denied access to the April 4, 2025 video recording, citing Florida Rule of Judicial Administration 2.420(c)(8) and §119.071(3)(a), Florida Statutes, classifying it as confidential "surveillance video footage." (Am. Pet. ¶20; Doc. 65, AG Response, §D.)
15. Defendants have offered no sworn affidavit, no security protocol documentation, and no evidence of any kind substantiating that the April 4, 2025 hearing video is, in fact, a "security system plan" within the meaning of the statute. Plaintiff does not contest Defendants' representation that video from seven other requested hearings was overwritten under a 30-day retention cycle and no longer exists; the focus of Plaintiff's video request, and of this Motion, is the **April 4, 2025 hearing video**, which Defendants concede exists and have affirmatively withheld with no evidentiary support whatsoever.
16. During the April 4, 2025 hearing in Case No. 24-DR-001150, Judge Kelly Ayers stated on the record her ability and intent to obtain video of the proceedings. (Am. Pet. ¶20; Certification ¶e, referencing Exhibit E, pp. 17–18.) That statement is flatly inconsistent with the subsequent denial of access on purported security-exemption grounds.
17. Plaintiff submitted follow-up correspondence on August 26, August 31, September 9, September 12, September 24, and October 9, 2025, requesting clarification on search methods, statutory bases for withholdings, and affidavits confirming the completeness of the search. Defendants provided no substantive response to these follow-ups. (Am. Pet. ¶¶16–19.)
18. On October 14, 2025, Plaintiff submitted additional Public Records Requests 6, 7, and 8, seeking specific communications regarding Judge Felix, Chief Judge Sabella, and Judge Ayers's disqualification records. As of the filing of the Amended Petition on November 13, 2025, Defendants had provided only a form acknowledgment with no substantive response. (Am. Pet. ¶¶14–19.)
19. On December 17 and 18, 2025, Interim Court Administrator K. Angela Smith issued letters demanding "special service charges" totaling \$1,721.60 (\$512.19, \$973.39, and \$236.02) to review records that should be readily available under the public records law. (Pl. Init. Disclosures, Witness List, ¶5.)
20. In Defendants' Initial Disclosures filed March 10, 2026, Defendants identified only four witnesses—three judges and one court administrator—and listed only "Public Records that were previously provided to Plaintiff" (DIN 6) as their sole document production. (Doc. 70, Defendants' Initial Disclosures.)
21. Defendants provided **no privilege log**, no search methodology documentation, no affidavits regarding the completeness of their search, and no new responsive documents whatsoever.
22. On April 1, 2026, Defendants filed a Motion for Protective Order seeking to stay all discovery (Doc. 72), arguing that "discovery should be stayed pending further ruling by the Court" and invoking judicial immunity to shield judges from deposition.
23. The motion is itself a full-throated invocation of Chapter 119 as applicable to these proceedings (Doc. 72 at 1), cite *O'Boyle v. Town of Gulf Stream*, 257 So. 3d 1036, 1040 (Fla.

- 4th DCA 2018), for the elements of "a cause of action under the state's Public Records Act codified in chapter 119, Florida Statutes" (Doc. 72 at 3).
24. All the materials requested are directly relevant to a live, pending family-court proceeding.
 25. The April 4, 2025 hearing was conducted before Judge Kelly Ayers on **Wife's Motion to Appoint Guardian Ad Litem**, originally filed in Case No. 24-DR-001150 on December 13, 2024.
 26. That same motion (the focus of the April 4, 2025 hearing, at Judge Ayers's insistence) remains pending today, and the Thirteenth Judicial Circuit has now set it for hearing again on **April 17, 2026, eight days from the filing of this Motion**.
 27. The video of the April 4, 2025 hearing is therefore not of historical interest only; it is contemporaneous evidence of proceedings on the very motion that will be heard again in eight days.
 28. Plaintiff has sought to obtain this critical evidence through these mandamus proceedings, through formal requests and motions in the original 13th Circuit family law matter, and through motions requesting the Second DCA supplement the appellate record with the video (as it's directly relevant to the precise issue on appeal – right to an impartial tribunal)
 29. To the undersigned's knowledge, no one has even viewed the video at issue for an assessment about security vs. public interest concerns.
 30. Judge Ayers bias and misconduct were at issue going back to December of 2024, the period during which the 13th Circuit is actively concealing records.
 31. Plaintiff had even filed the (first) formal motion to disqualify Judge Ayers months before this April 4, 2025 hearing.
 32. Public access to this April 4, 2025 video is even more critical based on Judge Ayers's bias and misconduct already squarely at issue in the proceedings at the time she incorporated the video into the record.
 33. The public interest in access—and Plaintiff's personal due-process interest in presenting the existing record of earlier proceedings on the same motion—are concrete, imminent, and substantial.

III. LEGAL STANDARD

34. Under the amended Rule 1.510, Florida has adopted the federal summary judgment standard established in *Celotex Corp. v. Catrett*, 477 U.S. 317 (1986). Summary judgment is proper when "there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." *In re Amendments to Fla. R. Civ. P. 1.510*, 317 So. 3d 72 (Fla. 2021).

35. In a mandamus action under Rule 1.630, when the petition is facially sufficient and the respondent has been ordered to show cause, the court must assess whether the response raises a genuine factual dispute warranting an evidentiary hearing. If the response fails to rebut the prima facie case, the court should enter a peremptory writ. *Radford v. Brock*, 914 So. 2d 1066, 1067–68 (Fla. 2d DCA 2005).

36. In public records cases, the presumption favors access. Article I, Section 24 of the Florida Constitution provides that "[e]very person has the right to inspect or copy any public record."

37. The custodian bears the burden of establishing the applicability of any exemption. *Woolling v. Lamar*, 764 So. 2d 765, 767 (Fla. 5th DCA 2000), "The burden is on the party claiming the exemption to demonstrate that the claimed exemption applies."); This burden is reinforced by the text of §119.07(1)(f), Florida Statutes, which requires the custodian to "state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential."

38. Where a custodian withholds records in whole or in part on the basis of a claimed exemption, §119.07(1)(f), Florida Statutes, requires the custodian to "state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential."

39. The failure to do so—the absence of a written, particularized privilege log—operates as a waiver of the claimed exemption and is, standing alone, grounds to compel production.

40. Where only a portion of a record is exempt, §119.07(1)(d) independently requires the custodian to "delete or excise from the record only that portion" and to "produce for inspection or copying the remainder of the record."

41. Furthermore, Section 119.11(1), Florida Statutes, mandates that "[w]henever an action is filed to enforce the provisions of this chapter, the court shall set an immediate hearing, giving the case priority over other pending cases." This expedited mandate reflects the Legislature's recognition that delay itself defeats the constitutional right of access.

42. The circumstances of the present case provide an extreme case for ensuring that these issues are expedited for 2 reasons.

- a. The public records at issue involve direct evidence of judicial misconduct that's escaped accountability to date, while continuing to damage a citizen in litigation.
- b. The citizen requesting access to the public records at issue continues to suffer consequences from the misconduct while still under authority of the Defendant Circuit, including directly under a named Defendant as Judge in his family law case, while Defendants continue to conceal direct evidence of precisely this internal misconduct, with no basis under the facts or law.

IV. ARGUMENT

A. Defendants' Responses Fail to Rebut the Prima Facie Case as a Matter of Law

43. Two independent judges have found that Plaintiff established a prima facie case for mandamus relief. The burden then shifted to Defendants to "show cause" why a peremptory writ should not issue. Between them, the Judicial Defendants' three responses (Docs. 40, 55,

65) and Motion for Protective Order (Doc. 72), and the Clerk's separate Response (Doc. 63), raise the following defenses—each of which fails as a matter of law.

Judicial Immunity Does Not Shield Records from Public Access.

44. The Judicial Defendants' primary defense invokes judicial immunity, citing *Parrotino*, *Johnson v. Harris*, *Forrester v. White*, and *Kalmanson v. Lockett* for the proposition that judges "enjoy absolute immunity for acts performed in the course of their judicial capacities." They renew that defense in Doc. 72 with citations to *Limehouse v. Whittemore*, 773 So. 2d 86, 87 (Fla. 2d DCA 2000), and *DHSMV v. Marks*, 898 So. 2d 1063 (Fla. 5th DCA 2005). This argument fundamentally misapprehends the nature of this action while exposing Defendants desperation to conceal these public records.
45. Nowhere within the pleadings is there any claim for damages from any judge.
46. Plaintiff does not even challenge any judicial decision in these proceedings. Plaintiff seeks production of public records—a ministerial act that the custodian is directed by law to perform.
47. Judicial immunity is a damages defense; it is not a records defense. Every case cited by Defendants concerns immunity from liability or compulsory deposition, not immunity from the custodian's constitutional duty to produce. *See Town of Manalapan v. Rechler*, 674 So. 2d 789, 790 (Fla. 4th DCA 1996) (ministerial duty of production is enforceable by mandamus).
48. The Florida Supreme Court has long made clear that the Public Records Act is to be construed broadly in favor of access, and that local or institutional policies cannot be interposed to delay or defeat production of records that are not expressly exempt. *See Tribune Co. v. Cannella*, 458 So. 2d 1075 (Fla. 1984) (holding that a municipality could not unilaterally delay release of otherwise-public personnel records and that the Public Records Act preempts local rules creating delay mechanisms not provided by statute). To read an absolute judicial exception into Article I, Section 24 would create precisely the kind of unwritten delay and concealment mechanism the Florida Supreme Court rejected in *Cannella*, and would contradict the constitutional presumption of access that Article I, Section 24 establishes.
49. Defendants' citation to *DHSMV v. Marks* for the proposition that "mental impressions" are protected is inapposite. Plaintiff does not seek judicial mental impressions. Plaintiff seeks communications, scheduling records, video recordings, and administrative correspondence—none of which constitute the decisional thought process protected by any deliberative privilege.
50. Email scheduling exchanges between a judicial assistant and counsel are administrative records, not judicial deliberations.
51. The Court's embarrassment or concern over possibly even internally corrected activity is not relevant to Public access of these records.

Defendants Are Judicially Estopped from Disclaiming Chapter 119.

52. **The Judicial Defendants have expressly accepted their duties under Chapter 119 including** in their January 8, 2026 Response, they pleaded "pursuant to... Florida Statutes Chapter 119" and described the action as one "in compliance with Florida Statute 119." (Doc. 40 at 1–2.) They expressly cited and quoted §119.07(1)(a), (c), (4), and (e) as the governing provisions that define their own duties as custodians of records. (Doc. 40 at 6–7.)
53. Critically, they invoked **§119.07(1)(e), Florida Statutes**, for the duty that "[s]hould the custodian of records determine that a portion of the requested record is exempt from inspection and disclosure, the custodian must provide the grounds for the exemption and include the statutory cite for the exemption." (Doc. 40 at 7.) They then failed to discharge that duty. They renewed their reliance on Chapter 119 in their April 1, 2026 Motion for Protective Order, describing the case as one "in compliance with Florida Statute 119" (Doc. 72 at 1) and invoking *O'Boyle v. Town of Gulf Stream*, 257 So. 3d 1036, 1040 (Fla. 4th DCA 2018), and *Moeller v. Se. Florida Behavioral Health Network, Inc.*, 392 So. 3d 579, 586 (Fla. 4th DCA 2024), as the governing Chapter 119 authorities. (Doc. 72 at 3.)
54. A party cannot invoke a statute as its operative framework in repeated filings and then, at summary judgment, disclaim its applicability. That is the paradigm case for judicial estoppel.
55. **Second, the outcome does not change even if Chapter 119 and Rule 2.420 are treated as alternative regimes.** Rule 2.420 tracks Chapter 119's substantive production duties: the obligation to produce non-exempt records, the obligation to identify exemptions in writing, the obligation to redact and produce non-exempt portions of partially exempt records, and the obligation to respond in good faith.
56. Whichever regime governs, the Judicial Defendants' obligations were materially identical, and the conduct Plaintiff documents in this Motion breaches those obligations regardless of whether the source of the duty is Chapter 119 or Rule 2.420.
57. Plaintiff therefore seeks relief in the alternative: under Chapter 119 as Defendants themselves have repeatedly invoked it, and independently under Rule 2.420 to the extent the Court concludes that Rule governs.
58. The Clerk Defendant, by contrast, has affirmatively disclaimed Chapter 119 in his separate Response, relying on *Times Pub. Co.*, 645 So. 2d at 1005, for the proposition that "chapter 119 does not apply to the clerk" with respect to judicial records. (Doc. 63 at 7.) Each Defendant is bound by the position it has filed. The Judicial Defendants' own invocation of Chapter 119 cannot be rescued by the Clerk's contrary position, which concerns only the Clerk's duties.

The "Futility" Defense Fails Without Evidentiary Support.

59. The Judicial Defendants argue in both Doc. 40 (§C) and Doc. 65 (§C) that "[m]andamus will not lie to compel the performance of an act that is futile or impossible to perform" because the requested videos "do not exist" or "are not available." (*See* Doc. 40 at 7; Doc.

65, §C, citing *Miami-Dade Cnty. Democratic Party v. Miami-Dade Cnty. Canvassing Bd.*, 773 So. 2d 1179, 1180 (Fla. 3d DCA 2000).)

60. This defense fails for two independent reasons. First, the assertion that records "do not exist" is a bare allegation in a responsive pleading.
61. Defendants have filed no sworn affidavits, no system logs, no IT certifications, and no testimony from any records custodian confirming the non-existence of these recordings.
62. Under the *Celotex* standard, the party opposing summary judgment must "go beyond the pleadings" and present specific facts showing a genuine dispute. *Celotex Corp.*, 477 U.S. at 324. A conclusory assertion in a brief is not evidence.
63. Defendants concede the April 4, 2025 video exists and have affirmatively withheld it on asserted exemption grounds—not on futility grounds. The futility defense is therefore irrelevant as to the sole video at issue, and it cannot defeat the mandamus petition as to the numerous categories of emails, text communications, recusal records, and scheduling communications that remain unproduced.

The Security Exemption Cannot Be Sustained on This Record.

64. The Judicial Defendants assert, most clearly in Doc. 65 (§D), that the April 4, 2025 video is exempt from disclosure as "confidential surveillance video footage" under §119.071(3)(a), Florida Statutes. The exemption fails on this record for four independent reasons.

(a) Defendants have not met their burden of proof. The burden to establish an exemption falls on the party asserting it. *Woolling*, 764 So. 2d at 767. On the present record, Defendants have offered nothing more than a bare label. There is no affidavit from any security official. There is no documentation describing the camera, its placement, its security protocols, or what security system features (if any) are visible in the footage. There is no specific finding that disclosure of this video would "reveal a security system plan or portion thereof" within the meaning of §119.071(3)(a). A conclusory assertion in a response brief is not evidence, and on summary judgment the absence of evidence is dispositive against the party bearing the burden.

(b) Defendants failed to comply with §119.07(1)(f)'s written particularity requirement. When a custodian withholds a record as exempt, the statute requires the custodian to "state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential." §119.07(1)(f), Fla. Stat. No such written particularized explanation was ever provided to Plaintiff with respect to the April 4, 2025 video. The failure to produce the statutorily required privilege log is itself a waiver of the exemption and is, independently, grounds to compel production. That failure was expressly renewed when Defendants filed their Initial Disclosures in this action on March 10, 2026 (Doc. 70) without any privilege log.

(c) The common-sense "revelation" theory is self-defeating. The §119.071(3)(a) exemption exists to protect **non-obvious** security information—the placement of concealed cameras, the blind spots in a surveillance network, the response protocols known only to security personnel. The claimed exemption cannot rationally extend to a recording of a public hearing held in a public courtroom. Any person who has set foot in a Florida courtroom knows that the bench, the well where parties and counsel sit, and the gallery are visible to cameras; that is obvious from the fixtures mounted in plain view. Releasing video of one hearing in one courtroom reveals nothing about camera placement, coverage angles, or security protocols that is not already apparent to any member of the public who walks into the building. Defendants' theory, taken to its conclusion, would exempt every recording from every courtroom camera anywhere in Florida, which is not the law.

(d) Defendants never attempted the statutorily required redact-and-produce alternative. Section 119.07(1)(d), Florida Statutes, provides that when part of a record is exempt, the custodian must "delete or excise from the record only that portion" and "produce for inspection or copying the remainder of the record." If Defendants had genuinely identified any specific portion of the April 4, 2025 video as revealing security-sensitive information, they were required to redact (blur, cut, or obscure) that specific portion and produce the rest. They did not. That is a separate statutory violation and further evidence that the exemption was invoked as a pretext for concealment rather than as a good-faith application of the statute.

65. **The balancing test tilts overwhelmingly toward disclosure.** Even assuming, arguendo, that a sliver of legitimate security interest exists, the public and private interests in disclosure vastly outweigh it.
66. The April 4, 2025 hearing is the only objective audiovisual record of a proceeding at which Plaintiff alleges his constitutional due-process rights were violated (as part of a conspiracy ongoing for 5 months at the time, now nearly a year and a half) involving Davis, Ayers, and Hodz.
67. Judge Ayers who had already denied Plaintiff's first motion to disqualify was clearly aware of the palpable concerns Plaintiff had about impartiality and active and intentional concealment of records.
68. Her misconduct involves open and obvious demonstrations of bias against a litigant accusing her of bias, lying about it, threatening getting the video, and then concealing it.
69. It's difficult to reconcile 13th Circuit Conduct with any sense of Justice necessary to carry out their function without some return to transparency and accountability.

70. The record is evidence of precisely the kind of judicial branch conduct the public records law was enacted to illuminate. And the video's evidentiary relevance is not hypothetical: **The Exact Motion to Appoint Guardian Ad Litem, which was heard by Judge Ayers on April 4, 2025, remains pending in Case No. 24-DR-001150 and is set for hearing again on April 17, 2026—eight days from the filing of this Motion.**
71. The April 4, 2025 video is contemporaneous evidence of earlier proceedings on the very motion that will be heard again in eight days.
72. A court conducting the balancing required by §119.071(3)(a) cannot reasonably weigh a hypothetical, unsupported security interest above a concrete, imminent, and statutorily protected public-access and due-process interest.
73. **The balancing falls especially hard in favor of public access when the 13th Circuit's concealment of the public records is directly obstructing access to justice within that same 13th Circuit that refuses to transfer the case despite the structural conflict.**
74. For all of these reasons, the security exemption does not justify Defendants' blanket refusal to produce the April 4, 2025 video. At minimum, the Court should order an in camera inspection of the recording to determine whether any portion arguably reveals security-sensitive information and whether redaction would permit production of the remainder.

The Imminent Public Interest: Electoral Transparency and Accountability – In light of Judge Ayers apparent pursuit of another term on the bench with an election later this year.

75. The constitutional mandate for transparency is at its absolute apex under these facts because Judge Ayers is an elected official, and the public has a fundamental right to evaluate her courtroom conduct.
76. The records being unlawfully concealed by the Defendants—specifically the April 4, 2025 video capturing her courtroom demeanor and her statements on the record, as well as the administrative communications evidencing the highly irregular scheduling of the December 13 and January 9 hearings—are objective evidence of a sitting judge's temperament, honesty, and impartiality.
77. When the 13th Circuit Administration actively shields a judge's on-the-record conduct from public view, the Defendants are not merely violating Chapter 119; they are operating an "immunity corridor" that actively subverts the democratic process.
78. Defendants cannot be permitted to weaponize a pretextual "security" exemption or use "concealment through volume" as a taxpayer-funded campaign shield to hide Judge Ayers's behavior from the electorate.
79. The citizens of Hillsborough County have a concrete, immediate interest in accessing these public records to make an informed determination about her fitness for judicial office, an interest that completely obliterates any hypothetical, unsubstantiated administrative excuse.

The "Records Were Provided" Argument Is Contradicted by the Record—and by Defendants' Own April 1, 2026 Filing.

80. The Judicial Defendants' final line of defense, asserted in both Doc. 40 (§§B, D) and Doc. 65 (§B), is that Plaintiff's "request for public records was satisfied" because 226 pages of documents were made available. (Doc. 40 at 5, 7; Doc. 65, §B.) That argument is refuted by the record—and now, decisively, by the Judicial Defendants' own verified filing in Doc. 72.
81. On April 1, 2026, the Judicial Defendants, through the Office of the Attorney General, filed a Motion for Protective Order that itself confirms the core facts underlying Plaintiff's Chapter 119 claim. In Doc. 72, Defendants acknowledge that the response to Plaintiff's public records request was not provided in the form Plaintiff sought and that a further category of responsive records has not been produced at all, offering as the sole justification the unparticularized assertion that such records "are confidential." (Doc. 72 at 5.)
82. Doc. 72 thus establishes three facts without Plaintiff needing to characterize it beyond its plain terms: (i) responsive records exist; (ii) a portion of those records was "received" by Plaintiff only in the form of the 226-page August 21, 2025 production; and (iii) a further category of responsive records was withheld on a bare, unparticularized claim of "confidentiality." Defendants do not identify any specific record being withheld. They do not identify any specific statutory exemption they contend applies to any specific record. And they have produced no privilege log.
83. That combination—an admitted withholding paired with a refusal to comply with the statutory procedure for asserting an exemption—is not a defense to Plaintiff's Chapter 119 claim; it is a violation of it. Section 119.07(1)(f) requires a custodian who contends that a record or any part of a record is exempt to "state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential." § 119.07(1)(f), Fla. Stat. Defendants have not done so—not in response to Plaintiff's original requests, not in response to the Alternative Writ, and not in Doc. 72 itself. Defendants cannot invoke an exemption they have never properly asserted, and cannot resist the statutory remedy for withholding records they now concede they are withholding.
84. Plaintiff's requests were specific and categorical. They sought, among other things: (a) communications regarding the scheduling of the December 13, 2024 and January 9, 2025 hearings; (b) recusal and disqualification records; (c) video recordings of public hearings; (d) communications regarding Judge DePaul's recusal process; and (e) records responsive to Public Records Requests 6, 7, and 8 filed October 14, 2025. Defendants do not claim—and cannot claim—that the 226 pages of emails from December 3, 2024 to January 16, 2025 fully satisfy these requests.
85. Moreover, Defendants' own March 10, 2026 Initial Disclosures confirm the insufficiency of their production. Defendants listed only the previously produced documents (DIN 6) and identified no additional responsive records. (Doc. 70.) They provided no privilege log itemizing withheld records and the specific statutory basis for each withholding, as §119.07(1)(f), Florida Statutes, requires. They provided no affidavit describing search

methods or confirming completeness. They identified no new responsive documents despite Plaintiff's expanded requests.

The Absence of a Privilege Log Is an Independent, Dispositive Waiver.

86. Section 119.07(1)(f), Florida Statutes, is not advisory. It commands that where any portion of a record is withheld on exemption grounds, the custodian "must state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential." The statutory text uses the imperative. It permits no free-form assertion of confidentiality by label alone. And it permits no silence at all.
87. Defendants have never produced a privilege log in this case.
88. Not in their original August 21, 2025 production.
89. Not in response to Plaintiff's several rounds of follow-up correspondence seeking compliance.
90. Not in their January 8, 2026 Response.
91. Not in Doc. 55.
92. Not in Doc. 65.
93. Not in their March 10, 2026 Initial Disclosures.
94. Not even in their April 1, 2026 Motion for Protective Order, in which Defendants simultaneously sought to stay discovery and conceded that responsive records exist and were not produced, without identifying any specific record, any specific statutory exemption, or any particularized basis for withholding. (Doc. 72 at 5.)
95. The absence of a particularized written privilege log is not a technical foot fault.
96. It is a waiver of any claim of exemption.
97. Without the privilege log, the Defendants have repeatedly failed to meet their burden of proving an exemption.
98. The Constitution and relevant rules require disclosure.
99. The damage from the intentional misconduct and concealment continues with Plaintiff trapped inside the same 13th Circuit that's biased against him, dishonest about it, and is continuing to commit bad faith discovery violations in concealing public records relevant to an ongoing dispute with the 13th Circuit.
100. The due process violations are stacked on one another, yet the 13th Circuit continues with concealment, unchecked absent an immediate writ.

Defendants' Silence on the Bait-and-Switch Allegation Is a Tacit Admission.

101. Plaintiff has alleged, repeatedly and specifically, that the August 21, 2025 production was a document-dumping and bait-and-switch operation designed to bury responsive records in 377 pages of unresponsive material. *See* Motion to Vacate (Doc. 49) ¶35.
102. Defendants have filed five substantive papers since that allegation first appeared (Docs. 40, 55, 63, 65, and 72). In none of those filings have Defendants denied the allegation.
103. Under Florida Statutes §90.803(18)(b), a statement offered against a party is admissible as a party admission when the party "manifested an adoption or belief in its truth."

104. Adoption may be shown by silence in circumstances where a denial would naturally be expected.
105. Here, where Plaintiff has alleged misconduct directly, and where Defendants have had five opportunities to deny it and have not, their silence is a series of adoptive admissions.
106. The facts of the case overwhelmingly support public access to all requested materials especially in consideration of the admissions to bad faith, unlawful efforts to conceal it.
107. The rule of law does not bend to the identity of the defendant.
108. Judicial officers, no less than any other public official, are bound to comply with the law and with the constitutional guarantee of access to public records. Art. I, § 24, Fla. Const.; Fla. Code of Jud. Conduct, Canon 2A ("A judge shall respect and comply with the law and shall act at all times in a manner that promotes public confidence in the integrity and impartiality of the judiciary."); Canon 1 ("A judge shall uphold and promote the independence, integrity, and impartiality of the judiciary.").
109. The Florida Supreme Court has long recognized that the public records law reaches the judicial branch in its administrative and custodial capacities. *Times Publ'g Co. v. Ake*, 660 So. 2d 255, 257 (Fla. 1995); *Tribune Co. v. Cannella*, 458 So. 2d 1075 (Fla. 1984). Enforcing Chapter 119 against Defendants — several of whom are themselves judicial officers — is not an affront to the judiciary; it is the judiciary holding itself to the same standard it applies to every other custodian in Florida.
110. The alternative — declining to enforce Rule 2.420 and Article I Section 24 of the Constitution because the custodians are members of the judicial branch — would create a categorical exception found nowhere in the statute, the Constitution, or the case law.
111. Such an exception would leave litigants without the remedy the Legislature expressly provided in § 119.11(1) and would signal that accountability under Florida's public records law depends on who the custodian is rather than on what the law requires.
112. The choice before the Court is therefore a narrow one. One path applies Chapter 119 as written — uniformly, and without regard to the custodian's office. The other carves out an unwritten exemption for judicial-branch custodians. Only the first path is consistent with Article I, § 24, with *Ake* and *Cannella*, and with the Canons that bind every Florida judge to respect and comply with the law.

The Records Concealed Correspond Precisely to Judge Ayers's Subsequent Disqualification—Evidence of Intentional Concealment.

113. The records Defendants concealed are not a random set of documents. They are precisely the records concerning Judge Ayers's handling of the December 13, 2024 conflict, Attorney Scott Davis's non-attendance at the January 9, 2025 hearing, and the Guardian Ad Litem issue where Judge Ayers remarkably tried to bulldoze through to an order at the April 4, 2025 hearing.
114. They are also precisely the records concerning the conduct that led, ultimately, to Judge Ayers's disqualification in the underlying family case.

115. The overlap is not coincidental. The Thirteenth Judicial Circuit was fully aware of the relevance of these records—its own presiding judge was disqualified over the very conduct they document.
116. Rather than produce the records (or identify them on a privilege log), Defendants buried Plaintiff in 377 pages of unresponsive material and then played some semantic games to suggest the production complete, while erecting unreasonable financial barriers to continue concealment of other records.
117. That pattern—selective concealment of records that bear on judicial conduct later found to warrant disqualification—is circumstantial evidence of consciousness of concealment.
118. It is relevant to the merits of the mandamus petition, because it demonstrates that Defendants' asserted grounds for withholding are pretextual.
119. It is independently relevant to Plaintiff's entitlement to attorney's fees under common law and/or §119.12 given the level of unreasonable obstruction and delay involved in the litigation.

The Clerk's "Wrong Party" Defense Does Not Defeat the Peremptory Writ as to the Judicial Defendants.

120. The Clerk of Court, separately represented, filed his own Response on February 23, 2026 (Doc. 63), taking the position that mandamus cannot lie against the Clerk because "the Clerk is not and has never been the custodian of the materials identified in the Amended Petition" and "the Clerk lacks possession, custody, and control over those records." (Doc. 63 at 2.)
121. Plaintiff is uncertain of the location and status of the records at issue, and the Clerk's office remains a defendant only to the extent that the Circuit Court may attempt to transfer records further delaying production.
122. The Clerk relies on Florida Rule of General Practice and Judicial Administration 2.420 and *Times Publishing Co. v. Clerk*, 645 So. 2d 1003 (Fla. 2d DCA 1994), for the proposition that judicial administrative records are governed by Rule 2.420 rather than Chapter 119 and that the custodian is the chief justice or chief judge, not the Clerk.
123. Critically, the Clerk's defense does not—and could not—assist the Judicial Defendants. To the contrary, the Clerk's Response expressly concedes that "the records at issue are within the custody and control of the Thirteenth Judicial Circuit and its officials, not the Clerk." (Doc. 63 at 6.)
124. The Clerk's own recitation of the record confirms that Plaintiff's correspondence was "each addressed to '13th Judicial Circuit, Legal Department – Public Records... Tampa, FL 33602,'" and that "all substantive responses to Plaintiff's requests came from judicial branch officials, not the Clerk." (Doc. 63 at 2–5.)
125. The Clerk thus functions as a hostile witness against the Judicial Defendants: his filing is an admission, by a sister-defendant, that the Judicial Defendants are the proper custodians and bear the ministerial duty to produce.
126. Plaintiff recognizes that the central battleground for production is the Judicial Defendants.

127. At minimum, the Clerk's Response underscores that the Court can and should enter a peremptory writ against the Judicial Defendants now, regardless of how the Court ultimately resolves the Clerk's separate position.

**B. The Structural Conflict Underscores the Need for
Immediate Summary Disposition**

128. The Thirteenth Judicial Circuit is simultaneously: (1) a party-defendant in this mandamus action, accused of unlawfully withholding public records; and (2) the adjudicator in the underlying family law case (24-DR-001150), where the very records being withheld would bear on judicial conduct that has already resulted in the disqualification of the presiding judge.

129. In fact, the critical evidence missing in the underlying case – video of the April 4th 2025 hearing- is a public record wrongfully withheld by the 13th Circuit.

130. It's centrally relevant to the current issue, the most concerning and aggressive form of retaliation from the defendant (assisted by Judge Ayers), the motion for a guardian ad litem for happy healthy children.

131. This dual role creates precisely the structural concern that Florida's public records guarantee was designed to address. The public records law exists to illuminate the conduct of public officials, particularly where that conduct is otherwise difficult to scrutinize.

132. When the entity withholding the records is also the entity whose conduct the records would illuminate, the presumption of access is at its most pressing in what the Constitution requires of state officials like the Defendants.

133. The procedural history of this case confirms the urgency. This action was filed on October 14, 2025—nearly six months ago. Another Judge was disqualified for bias against Plaintiff and his efforts for accountability.

134. The constitutional mandate for "immediate hearing" under §119.11(1) has been frustrated by repeated procedural delays.

135. Meanwhile, the underlying family case continues to proceed before the same circuit whose records are being withheld, and Wife's Motion to Appoint Guardian Ad Litem—the very motion heard on April 4, 2025 before Judge Ayers—is set for hearing again on April 17, 2026.

C. Defendants' April 1, 2026 Motion for Protective Order (Doc. 72)

Confirms That Summary Disposition Is Appropriate

136. Far from undermining Plaintiff's Motion, Defendants' own April 1, 2026 Motion for Protective Order confirms that summary disposition is appropriate and ripe.

137. Defendants argue in Doc. 72 that "discovery should not proceed until immunity and other dispositive issues have been resolved" (Doc. 72 at 3) and that "[m]andamus is designed to be decided on existing evidence" (Doc. 72 at 3).

138. Plaintiff agrees. The existing evidence—the four Defendant responses, the 226-page production, the complete absence of a privilege log at any stage, the Initial Disclosures that identified no new responsive records, and Defendants’ own concession in Doc. 72 that responsive records exist and were not produced while identifying no specific record, no specific exemption, and no particularized basis under § 119.07(1)(f)—is already legally sufficient for this Court to enter a peremptory writ.
139. The appropriate response to Doc. 72 is not a stay but an immediate hearing on this Motion, as §119.11(1), Florida Statutes, requires.
140. Defendants' argument that "Plaintiff seeks the same documents in discovery that are subject to the litigation" (Doc. 72 at 5) inadvertently reaffirms Plaintiff's arguments.
141. The documents "subject to the litigation" are the public records that Defendants are obligated to produce.
142. The entire purpose of this mandamus action is to compel the ministerial act of production.
143. Yet the attorney general’s office continues to ignore the law and constitution to fight against transparency, creating even more concerns that all of this is in the wake of SB 1652, providing Florida Judges with an unprecedented power to strike material that would otherwise remain part of the public record.

D. The Court Should Take Up This Motion at the April 13, 2026 Hearing as an Immediate Hearing Under §119.11(1).

144. Section 119.11(1), Florida Statutes, provides that “[w]henever an action is filed to enforce the provisions of this chapter, the court shall set an immediate hearing, giving the case priority over other pending cases.”
145. This Court has a hearing already set for April 13, 2026.
146. Plaintiff agrees - the legal issues are fully briefed; no further discovery is necessary for resolution of the Motion; and any further delay is inconsistent with the Legislature’s express command that public-records actions be given priority.
147. Defendants themselves concede in Doc. 72 that mandamus “is designed to be decided on existing evidence” (Doc. 72 at 3), and the existing evidence—including Defendants’ own concession in Doc. 72 that responsive records exist and were withheld without any specific statutory exemption, any particularized written basis under § 119.07(1)(f), or any privilege log (Doc. 72 at 3-5)—is legally sufficient to warrant entry of a peremptory writ.
148. Plaintiff respectfully requests that the Court grant this motion immediately given the record failure of Defendants to meet their burden to demonstrate an exemption and take up this Motion for Summary Final Order at the April 13, 2026 hearing, or in the alternative, set this Motion for an immediate hearing consistent with §119.11(1).
149. The delays are causing further damage to a family, disruption to due process rights, and deterioration in public trust of the judiciary.
150. Transparency and accountability are constitutional guarantees under these facts.

V. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Court:

1. Enter a Summary Final Order finding that Defendants have failed to rebut the prima facie case for mandamus relief and have failed to demonstrate a legally sufficient basis for withholding the requested records;
2. Issue a Peremptory Writ of Mandamus commanding Defendants to produce all records identified in Part A of the Prayer for Relief in the Amended Petition/Complaint within forty-eight (48) hours of the Court's order, consistent with §119.11(1), Florida Statutes;
3. In the alternative, order an immediate *in camera* inspection of the April 4, 2025 video recording to determine whether the claimed security exemption under §119.071(3)(a), Florida Statutes, has been properly applied, and whether redaction of any legitimately security-sensitive portions would permit production of the remainder;
4. Order Defendants to produce a complete privilege log identifying every withheld record, the specific statutory exemption claimed for each, and a factual description sufficient for the Court to evaluate the claimed exemption, within fourteen (14) days, as required by §119.07(1)(f), Florida Statutes;
5. Order Defendants to file sworn affidavits from the records custodian(s) detailing: (a) the specific search terms, custodians, devices, and systems searched; (b) whether personal devices of judges and judicial assistants were searched; and (c) the basis for any assertion that responsive records do not exist;
6. Deny Defendants' Motion for Protective Order (Doc. 72) as inconsistent with the constitutional mandate for expedited resolution of public records disputes and mooted by entry of the peremptory writ requested herein;
7. Award Plaintiff entitlement to attorney's fees and costs under §119.12, Florida Statutes, Rule 2.420(l), and the Court's inherent equitable authority for bad-faith conduct, to be determined following resolution of the merits; and
8. Grant such other and further relief as this Court deems just and proper.

VERIFICATION

I, Christopher Hanson, both as plaintiff and plaintiff's attorney, and as an officer of the Court, declare under penalty of perjury that the above is true and correct to the best of my knowledge.

Certified and executed on April 9th, 2026

/s/ Christopher Hanson
CHRISTOPHER HANSON, ESQ.

Florida Bar No. 44094
Tel: 727-409-5738
Email: cahanson77@yahoo.com Plaintiff,

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been filed and served via the Florida Courts E-Filing Portal on this 9th day of April, 2026, to:

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/s/ Christopher Hanson
Christopher Hanson, Esq.

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
CIVIL DIVISION**

**CHRISTOPHER HANSON, individually and
as attorney for himself and attorney/next
friend for his minor children,**

Plaintiff/Petitioner,

v.

Case No.: 25-CA-010255

Division: B

**THIRTEENTH JUDICIAL CIRCUIT COURT,
CHIEF JUDGE CHRISTOPHER C. SABELLA,
JUDGE KELLY AYERS, JUDGE MATTHEW
FELIX, COURT ADMINISTRATOR GINA
JUSTICE, MIKE MOORE, AND CLERK OF
COURT VICTOR CRIST,**

Defendants/Respondents.

**PLAINTIFF'S MOTION FOR SANCTIONS AND ENTRY OF
PEREMPTORY WRIT OF MANDAMUS, OR, ALTERNATIVELY,
FOR WRITTEN ORDER WITH FINDINGS SETTING
EVIDENTIARY HEARING**

Plaintiff, Christopher Hanson, respectfully moves this Court, pursuant to Article I
Section 24 of the Florida Constitution, Florida Rule of Judicial Administration **2.420(i)**,
Florida Rule of Civil Procedure **1.380**, Section **119.12**, Florida Statutes, Florida Rule of

Civil Procedure 1.630(e), and the Court's inherent authority to sanction bad-faith litigation conduct, for (a) entry of the peremptory writ of mandamus on the ground that Defendants have waived any claimed exemption as a matter of law and have filed a legally insufficient return to the Alternative Writ; (b) in the alternative, an order striking Defendants' unparticularized confidentiality assertion under Florida Rule of Civil Procedure 1.140(f), followed by entry of the peremptory writ; (c) in the further alternative, formal sanctions against the Judicial Defendants and their counsel of record; or (d) in the further alternative, entry of a written order containing specific findings of fact and conclusions of law identifying the material facts the Court finds to be genuinely disputed and the evidentiary support for those facts in the record, so that the parties may consider any necessary remaining discovery before an evidentiary hearing on the facts still in dispute.

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Plaintiff's 3-18-26 email chain – p. 21-30

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Scope:

This Motion addresses the issues raised during the April 13, 2026 hearing, which overlap with those raised in Plaintiff's Motion for Summary Final Order Compelling Production of Public Records and Entry of Peremptory Writ of Mandamus (the "MSFO"), filed April 9, 2026. At the April 13, 2026 hearing, Plaintiff argued that as Judicial Defendants pointed out, the discovery phase was over and that, based on the absence of any genuine dispute as to any material fact, entry of the peremptory writ was appropriate. Plaintiff further argued that the bad faith shown by Defendants throughout— notwithstanding procedural accommodations extended to Defendants well beyond those authorized by the Florida Rules of Civil Procedure—justified expedited production, given the April 17, 2026 hearing on the same Motion to Appoint Guardian Ad Litem to which the withheld April 4, 2025 hearing video directly relates. The Court indicated it was

proceeding toward a final hearing. Consistent with that indication, Plaintiff now files this Motion to either obtain mandamus, to present the formal sanctions record the rules require and to narrow the issues the Court will need to resolve. In support thereof, Plaintiff states as follows:

I. LEGAL FRAMEWORK

1. This is a public-records mandamus action for records of the judicial branch under Article I, Section 24 of the Florida Constitution; Florida Rule of Judicial Administration 2.420; and, to the extent applicable, Chapter 119, Florida Statutes. The procedural vehicle is an original proceeding under Rule 1.630, with summary disposition sought under Rule 1.510. Rule 2.420(l) expressly prescribes mandamus as the remedy for denial of access to administrative records of the judicial branch. Two judges of this Court have independently found a prima facie case. (Doc. 47, Alt. Writ by Judge Frayman; Doc. 61, Order of Judge Coleman, Feb. 9, 2026.)
2. Rule 1.630(e) requires that a Defendant respond to a writ as provided in **Rule 1.140**. When such a response is filed, **Rule 1.140(d)** mandates that the Court determine the legal sufficiency of the defenses 'before trial.' This procedural requirement, coupled with the priority mandates of of **Fla. R. Gen. Prac. & Jud. Admin. 2.420(i)** and **Section 119.11(1), Florida Statutes**, leaves the Court with only two valid paths: grant the Peremptory Writ as a matter of law or immediately identify and set a hearing for the specific facts in dispute.
3. Whether the governing framework is Chapter 119 or Rule 2.420, the custodian's procedural duties are materially identical: §119.07(1)(f) ("state in writing and with particularity the reasons" for any exemption); Rule 2.420(m)(2) ("the custodian shall state in writing the basis for the denial"); Rule 2.420(e)(1) (any claim of confidentiality requires a written Motion to Determine Confidentiality identifying particular records, specifying bases, citing specific legal authority, and accompanied by a signed good-faith certification); Rule 2.420(c)(9)(B)–(C) (findings of "no broader than necessary" and "no less restrictive measures" required). Despite the

Court granting 3 chances to respond to the writ, the 13th Circuit has done none of that.

4. **Rule 2.420(i) expressly authorizes sanctions against parties and their attorneys.**

The rule provides, in relevant part:

- a. Sanctions. After notice and an opportunity to respond, and upon determining that a motion, filing, or other activity described below was not made in good faith and was not supported by a sound legal or factual basis, the court may impose sanctions against any party or non-party and/or their attorney, if that party or non-party and/or their attorney, in violation of the applicable provisions of this rule: (1) seeks confidential status for non-confidential information by filing a notice under subdivision (d)(2); (2) seeks confidential status for non-confidential information by making any oral or written motion under subdivision (d)(3), (e), (f), (g), or (h); [***] Nothing in this subdivision is intended to limit the authority of a court to enforce any court order entered pursuant to this rule.
5. Rule 2.420(i) thus supplies a rule-based sanctions remedy targeted at precisely the misconduct at issue here offers an extreme example in that the Judicial Defendants have failed to even identify the precise materials concealed let alone pursue any steps required by rule for a finding of confidentiality. Plaintiff has consistently pursued the video for over a year and other materials sought for several months. Judicial defendants have waived any opportunity to claim confidentiality while failing to follow the rules for several months.
 6. Claiming confidential status for records that the custodian cannot, in good faith and with sound legal and factual basis, demonstrate are actually confidential—and doing so without invoking the formal Rule 2.420(e) Motion to Determine Confidentiality procedure the rule requires. The Rule 2.420(i) remedy is **independent of, and cumulative to**, the attorney's-fees remedy in §119.12, Florida Statutes, the discovery

sanctions available under Florida Rule of Civil Procedure 1.380, the §57.105 remedy against counsel, and the Court's inherent authority. This Motion invokes all of them.

II. THE FATAL DEFECT: DEFENDANTS HAVE NOT IDENTIFIED ANY SPECIFIC WITHHELD RECORD OR PARTICULARIZED ANY EXEMPTION BEYOND THE VAGUE AND UNSUPPORTED SECURITY LABEL

DISPOSITIVE AS A MATTER OF LAW

7. The defect at the heart of this case is more fundamental than any sanctions rule is designed to address. The Judicial Defendants have refused to engage as the Rule requires. They have never identified, on a record-by-record basis, what they are withholding. They have never particularized any exemption in writing. They have never filed the Rule 2.420(e)(1) Motion to Determine Confidentiality the rule requires. They have substituted a conclusory "confidential" label for every procedural predicate the Florida Constitution, Chapter 119, and Rule 2.420 impose on a custodian. That conduct is dispositive on five independent grounds.

A. Defendants Have Waived Any Claimed Exemption as a Matter of Law.

8. The statutory and rule-based duties of a custodian claiming an exemption are not procedural niceties—they are **conditions precedent** to the assertion of the exemption itself. Sections 119.07(1)(d)–(f) require the custodian to redact and produce the non-exempt remainder, to state the basis of the exemption with statutory citation, and upon request to "state in writing and with particularity the reasons" for any claimed exemption. Rule 2.420(m)(2) imposes a parallel duty. These are ministerial duties—the precise kind for which mandamus is the designated remedy.
7. A custodian who fails to perform these fundamental duties has not validly asserted an exemption; rather, the exemption is waived. This constitutional and statutory framework is functionally identical to the civil-discovery rule dictating that a party who fails to produce a particularized privilege log waives the asserted privilege. See

Fla. R. Civ. P. 1.280(b)(6); cf. *Gosman v. Luzinski*, 937 So. 2d 293, 296 (Fla. 4th DCA 2006) (holding that the failure to prepare a privilege log results in a waiver of the privilege). The animating principle is exactly the same because the structural purpose is the same: the requesting party and the trial court must be permitted to test the factual and legal validity of the claimed protection. A party who deliberately refuses to identify what he claims is protected has abandoned the claim as a matter of law.

8. The constitutional underpinning is even stronger in the public-records context. Exemptions from the Article I, Section 24 right of access must be **narrowly construed and particularly justified**. See *Baker Cnty. Press, Inc. v. Baker Cnty. Med. Servs., Inc.*, 870 So. 2d 189 (Fla. 1st DCA 2004) (wholesale or blanket exemption claims are constitutionally inadequate); *Woolling v. Lamar*, 764 So. 2d 568, 572 (Fla. 5th DCA 2000) (burden on the custodian). A bare "confidential" label does not carry that burden; it inverts the constitutional presumption of access. On this record—an un-identified universe of records, a wholesale label, no particularized reasons, no good-faith certification, no sworn support—any claimed exemption is **waived as a matter of law**. Waiver is a legal conclusion, not a discretionary finding. The Court need not find bad faith to apply it.

B. Defendants' Return Is Legally Insufficient Under Rule 1.630(e); Entry of the Peremptory Writ Is the Mandatory Consequence.

9. Rule 1.630(e) is mandatory and non-discretionary: once the alternative writ issues, the respondent must either produce the records or show cause via a return that complies with the standards of Rule 1.140. Pursuant to Fla. R. Civ. P. 1.140(d), the legal sufficiency of such a return 'shall be heard and determined before trial,' a requirement made urgent by the expedited mandates of Fla. R. Gen. Prac. & Jud. Admin. 2.420(i) and Section 119.11(1), Florida Statutes.
10. Judge Coleman's February 17, 2026 Alternative Writ (Doc. 62) commanded Defendants to produce or 'show cause in writing why this Court should not issue a

peremptory writ.' Defendants' responsive filings (Docs. 65 and 72) did neither. They failed to identify the specific records withheld, failed to particularize exemptions as required by §119.07(1)(f) and Rule 2.420(m)(2), and offered no sworn evidence. By substituting a conclusory label for a factual return, Defendants have effectively refused to respond. Under the combined weight of Rule 1.630(e) and the preliminary hearing mandate of Rule 1.140(d), the entry of a Peremptory Writ is the required ministerial operation of the law—leaving this Court with no discretionary alternative.

C. The Refusal to Identify Forecloses Every Mechanism of Judicial Review and Is Independently Dispositive.

11. Every mechanism for adjudicating a claimed exemption presupposes identification of the records at issue. Section 119.07(1)(g) authorizes in camera inspection—**impossible** without identification. Rule 2.420(c)(9)(B)–(C) and Rule 2.420(e)(3)(G) require findings of "no broader than necessary" and "no less restrictive measures"—**impossible** without record-specific analysis. Appellate review under Rule 9.100 requires a reviewable record—**impossible** where the trial record does not identify what was withheld. A custodian who refuses to identify thus creates an un-reviewable confidentiality claim, nullifies every statutory safeguard, and transforms the scheme into a secret-exemption regime the Florida Constitution does not authorize. The only coherent reading is that identification is a **condition precedent** to any exemption claim—and its absence operates as waiver.

D. The Constitutional Presumption of Access Cannot Be Rebutted by a Conclusory Label.

12. Article I, Section 24(a) guarantees every person "the right to inspect or copy any public record" of the state. Exemptions are disfavored, narrowly construed, and must be supported by a particularized showing. *Woolling*, 764 So. 2d 765 (Fla. 5th DCA 2000).2; *Baker County Press*, 870 So. 2d 189; *Lee*, 189 So. 3d at 126. A custodian

asserting confidentiality without identification and without particularized reasons has not carried the constitutional burden—he has transferred it back onto the requester to disprove a phantom exemption. That inverts the constitutional structure. The Court is bound to restore the proper allocation of burdens, which on this record means the withholding fails.

E. The Court Should Strike Defendants' Unparticularized Confidentiality Assertion as Legally Insufficient Under Rule 1.140(f), Applied Through Rule 1.630(a).

13. Rule 1.630(a) provides that mandamus actions "are governed by the Florida Rules of Civil Procedure." Rule 1.140(f) authorizes the Court to strike any "insufficient defense." Defendants' unparticularized, record-blind, unsupported confidentiality assertion is, as a matter of pleading sufficiency, no different from a conclusory affirmative defense without factual allegations—and Florida courts routinely strike such defenses. Plaintiff therefore moves, in the alternative to the waiver and Rule 1.630(e) grounds above, for an order **striking** the claimed exemption as legally insufficient on its face. Once stricken, Defendants' filings contain no defense to the production commanded by the Alternative Writ, and the peremptory writ follows as a matter of law. This gives the Court a familiar civil-litigation lever to reach the same result the waiver analysis independently commands—with no discretionary sanctions finding and no further evidentiary development.

**III. THE RECORD ESTABLISHES PROCEDURAL AND
SUBSTANTIVE FAILURES**

14. Plaintiff's position, stated at the April 13, 2026 hearing, is that the peremptory writ should issue on the pleadings. Defendants have not met their burden of production on any claimed exemption. More fundamentally, Defendants have not even identified the universe of responsive records in their custody. They have produced no catalog, no inventory, and no description by date, author, or

subject of the records they are withholding. There is therefore no record against which any claimed exemption can be tested by the Court, by Plaintiff, or by any reviewing court.

15. Defendants have not complied with §119.07(1)(f) or with Rule 2.420(m)(2); they have not provided a particularized written statement of the basis for any denial of access. Defendants have not filed a Motion to Determine Confidentiality under Rule 2.420(e)(1) with the specificity, bases, and specific legal authority that rule requires. Defendants have not produced a privilege log. These are not minor procedural lapses; they are the very predicates the Florida Constitution, the statutes, and the Rules of Judicial Administration require a custodian to satisfy before withholding a judicial-branch record from public access.

16. The identification failure is independently dispositive. Section 119.07(1)(g), Florida Statutes, authorizes the Court to conduct an in camera inspection of records a custodian claims are exempt. Rule 2.420 likewise contemplates judicial inspection where confidentiality is properly raised. In camera inspection is, however, impossible where the custodian has never identified the records at issue. A public-records respondent cannot insulate its withholding from both production and judicial inspection by declining to say what it is withholding – especially when the withholding is damaging litigants under its jurisdiction as in these facts. Delay caused by the custodian's refusal to identify withheld records is itself a denial of access. Allowing that posture to continue would nullify both the constitutional right of access in Article I, Section 24 and the "immediate hearing" mandate of §119.11(1).

IV. IN THE FURTHER ALTERNATIVE, FORMAL SANCTIONS ARE WARRANTED UNDER RULE 2.420(i), RULE 1.380, § 119.12, AND THE COURT'S INHERENT AUTHORITY — CUMULATIVE TO SECTION II

17. The arguments set forth in Section II above dispose of this case as a matter of law, without any need for the Court to reach the discretionary sanctions question. Plaintiff nevertheless preserves and formally invokes sanctions against the Judicial Defendants and against their counsel of record, Senior Assistant Attorney General Jessica Schwieterman and the Office of the Attorney General, under Rule 2.420(i), Rule 1.380, §119.12, §57.105, and the Court's inherent authority. The Court need not find bad faith or impose sanctions to grant the relief Plaintiff seeks. Entry of the peremptory writ on waiver grounds (Section II.A), on insufficient-return grounds (Section II.B), on impossibility-of-review grounds (Section II.C), on constitutional-presumption grounds (Section II.D), or on motion-to-strike grounds (Section II.E) is the cleanest and most appropriate disposition and does not implicate sanctions at all. Sanctions are formally demanded and preserved, in the alternative, for the Court to reach only if it declines the Section II grounds.

A. Rule 2.420(i): Defendants Seek Confidential Status for the April 4, 2025 Video Without the Good-Faith, Record-Specific Procedural Showing Rule 2.420(e)(1) Requires.

18. Rule 2.420(i)(2) authorizes sanctions against "any party or non-party and/or their attorney" who, in violation of Rule 2.420, "seeks confidential status for non-confidential information by making any oral or written motion under subdivision (d)(3), (e), (f), (g), or (h)." The predicate finding is that the motion or filing "was not made in good faith and was not supported by a sound legal or factual basis." Defendants' claim of confidential status for the April 4, 2025 hearing video satisfies every element.

19. Defendants have asserted that the April 4, 2025 video is confidential. In their September 8, 2025 denial letter, and again in Doc. 65 8D and Doc. 72, Defendants have maintained that the video is "confidential surveillance video

footage" exempt under §119.071(3)(a), Florida Statutes. The Judicial Defendants have invoked that purported confidentiality to resist production in correspondence, in their formal responsive pleadings, and most recently in their April 1, 2026 Motion for Protective Order (Doc. 72). Each of those filings is an "other activity" within the ambit of Rule 2.420(i), and Doc. 72 is expressly a written motion.

20. Defendants did not use the procedure Rule 2.420 requires for asserting confidentiality of a court record. Rule 2.420(e)(1) requires that a request to determine the confidentiality of trial court records in a noncriminal case "must be made in the form of a written motion captioned 'Motion to Determine Confidentiality of Court Records'" that (A) "identifies] the particular court records or a portion of a record" with specificity; (B) "specifies] the bases for determining that such court records are confidential"; and (C) "set[s] forth the specific legal authority and any applicable legal standards for determining such court records to be confidential." The rule further requires that the motion be accompanied by "a signed certification by the party or the attorney for the party making the request that the motion is made in good faith and is supported by a sound factual and legal basis." Defendants have filed no such motion. They have tendered no such certification. They have by-passed the formal confidentiality channel the rule requires.

21. The informal confidentiality claim is not supported by a sound legal or factual basis. A hearing conducted in a public courtroom is not, as a matter of common sense or of statutory construction, a "security system plan or portion thereof" within the meaning of §119.071(3)(a). The cameras in any Florida courtroom are mounted in plain view, and the coverage—the bench, the well, the gallery—is apparent to every member of the public who enters. A single hearing recording reveals nothing about camera placement, coverage, or

protocols that is not already obvious. Defendants have offered no affidavit, no system-level documentation, no in-camera tender, and no "no less restrictive measures" analysis as Rule 2.420(c)(9)(B)–(C) would require. The burden of supporting an exemption falls on the custodian. *Woolling.v.Lamar*, 764 So. 2d 765 (Fla. 5th DCA 2000); *Board.of.Trustees?Jacksonville.Police.™.Fire.Pension.Fund.v.Lee*, 189 So. 3d 120, 126 (Fla. 2016). Defendants have not begun to carry that burden. The inference is straightforward: had Defendants been prepared to sign a Rule 2.420(e)(1) good-faith certification, they would have filed one. They did not. The omission itself is probative.

22.The conduct fits Rule 2.420(i)(2) precisely. Defendants have, in substance, sought confidential status for non-confidential information through filings in the Rule 2.420 universe, without invoking the formal Rule 2.420(e) Motion-to-Determine-Confidentiality procedure and without the signed good-faith certification that procedure requires. After notice and opportunity to respond, sanctions are warranted.

23.The Rule 2.420(i) analysis does not stand alone. The broader pattern of bad-faith conduct supporting sanctions is documented below under Rule 1.380, §119.12, §57.105, and inherent authority. That broader record informs the Rule 2.420(i) good-faith determination and is independently sufficient under the other sanctions authorities invoked.

B. Independent Bad-Faith Record Supporting Sanctions Under All Invoked Authorities.

24.The withholding is unsupported as law and fact, and the Initial Disclosures confirm it. Defendants have never identified what they are withholding, never produced a privilege log, never filed a Rule 2.420(e)(1) motion, and offered no affidavit or competent evidence supporting the §119.071(3)(a) security

exemption asserted for the April 4, 2025 video. Their March 10, 2026 Initial Disclosures (Doc. 70) compound the defect: Rule 1.280(a) required identification of witnesses and the subjects of their testimony, plus categories and locations of supporting documents. Defendants identified four witnesses without telephone numbers and without subjects (Doc. 70 §A), and their sole document disclosure is a circular reference to the records Plaintiff himself already filed (Doc. 70 §B). Zero internal search logs. Zero exemption analyses. Zero administrative memoranda. Defendants cannot claim statutory exemptions justify withholding and decline to disclose the administrative records that would demonstrate those exemptions. That contradiction is not oversight—it is selective disclosure as obstruction.

25. Plaintiff put Defendants on formal notice; Defendants doubled down and then confessed non-compliance. In written correspondence dated March 18, 2026 (attached as Exhibit A), Plaintiff demanded an amended disclosure specifying the subjects of each witness's testimony, identifying internal administrative records by category and location, producing the required privilege log, and cooperating in scheduling depositions.
26. Defendants did not amend, did not produce a log, did not provide deposition dates, and did not respond substantively. Silence in the face of formal notice and specific demand is "lack of good faith" within the ordinary meaning of Rule 2.420(i) and within Florida's adoptive-admission jurisprudence. See §90.803(18)(b), Fla. Stat.

C. Rule 1.380 Discovery Sanctions: Defendants' Initial Disclosures and Refusal to Cooperate on Depositions Violate Rule 1.280.

27. Rule 1.380 authorizes sanctions for failures to make required disclosures or to cooperate in discovery. Both failures are present. Defendants' Initial

Disclosures violate Rule 1.280 in the particulars identified in paragraph 14 above. Defendants' refusal to provide any deposition dates—despite Plaintiff's repeated written demands of March 3, March 18, and thereafter—violates Rule 1.280's parallel duty to cooperate in the discovery process. See Fla. R. Civ. P. 1.380(a), (b), (d), authorizing sanctions including the payment of fees, striking of defenses, and adverse inferences.

28. Defendants' posture is particularly indefensible because Defendants themselves initiated discovery. (See Exhibit A; Schwieterman, Jan. 20, 2026, indicating she would "move on to discovery once... initial disclosures were provided.") Plaintiff served his initial disclosures on February 17, 2026. Defendants' responsive disclosures were due March 6, 2026. They arrived on March 10, 2026, four days late, and in the facially deficient form described above. Defendants cannot formally invoke the initial-disclosure process as the condition for discovery and then, under the guise of a "stay" motion, disclaim the discovery obligations that process triggered.

D. § 119.12 Bad-Faith Fees Against the Custodian.

29. Section 119.12(1), Florida Statutes, provides that the Court shall assess reasonable costs of enforcement, including attorney's fees, against the custodian that unlawfully refused access, and §119.12(2) extends that fee exposure to "any agency, public officer, or person" found to have acted in bad faith in denying access. The record in this case—the absence of a privilege log, the unsubstantiated security exemption, the Doc. 72 admission, the facially deficient initial disclosures, the refusal to schedule depositions, and the pattern of selective concealment of records bearing on judicial conduct later found to warrant disqualification—is more than sufficient to satisfy the bad-

faith standard. Plaintiff preserves and formally demands \$119.12 fees against the Judicial Defendants.

E. Sanctions Against Counsel Under § 57.105 and the Court's Inherent Authority.

30. Plaintiff further demands sanctions against Senior Assistant Attorney General Jessica Schwieterman and the Office of the Attorney General under §57.105, Florida Statutes, and the Court's inherent authority to sanction bad-faith litigation conduct. A position is not made in good faith where counsel knows, or by reasonable inquiry would know, that no competent evidence supports it. Counsel's continued assertion of the security exemption for the April 4, 2025 video, without any affidavit, system documentation, or in camera tender; counsel's filing of a Motion for Protective Order that simultaneously concedes non-compliance with Chapter 119 and asks the Court to stay discovery into that non-compliance (Doc. 72 at 5); and counsel's refusal to provide a privilege log, subjects of testimony, or deposition dates notwithstanding formal written demand on March 18, 2026 (Ex. A), all satisfy the standard.

31. Sanctions at the individual-attorney level are warranted both as a direct remedy and to break the pattern by which the Office of the Attorney General has, in this case, operated as a procedural shield for the very misconduct the public-records law was enacted to illuminate.

F. Specific Sanctions Requested.

32. Plaintiff requests the following sanctions, imposed jointly and severally against the Judicial Defendants and their counsel as appropriate under the authority invoked for each:

(a) Entry of the peremptory writ of mandamus as a sanction under Rule 2.420(i) and Rule 1.380(b)(2)(A), on the ground that Defendants' exemption defenses are

unsupported by competent evidence, not disclosed through required channels, and therefore waived;

(b) Striking all claimed exemptions as a discovery sanction under Rule 1.380(b)(2)(B) and (C), with the consequence that the records must be produced without redaction;

(c) Adverse inference under Rule 1.380(b)(2)(A) and the Court's inherent authority, to the effect that the records Defendants have refused to identify contain evidence unfavorable to Defendants' position in this proceeding;

(d) Attorney's fees and costs under § 119.12, § 57.105, Rule 1.380(a)(4) and (b)(2), and the Court's inherent authority, with amounts to be determined by subsequent affidavit;

(e) Prohibition under Rule 1.380(b)(2)(B) against Defendants' introduction of any evidence in support of any exemption defense that was not produced through the mandatory disclosure channels described in Section I above;

(f) any and all additional sanctions the Court deems appropriate in light of the findings made.

33. For the avoidance of doubt: Plaintiff respectfully submits that sanctions (a) and (b) would have the legal effect of producing the peremptory writ by a second route, which is why Plaintiff emphasizes that the Court need not reach the sanctions question to enter the writ on the existing record under Rule 1.630(e) and Rule 1.510. Sanctions are requested in the full-force formal sense, but the path of least procedural friction to the relief Plaintiff ultimately seeks is entry of the peremptory writ on the existing undisputed record.

V. RELIEF REQUESTED

34. Because any disposition of this extraordinary-writ proceeding is subject to appellate review under Florida Rule of Appellate Procedure 9.030 and 9.100,

Plaintiff respectfully requests that the Court's ruling be reduced to a written order containing findings sufficient to permit meaningful review. At minimum, Plaintiff requests that the order specifically address the following:

- a.** Whether Defendants have identified, on a record-by-record basis, any specific record being withheld, and the legal effect of any failure to do so under §119.07(1)(f), Rule 2.420(e)(1)(A), Rule 2.420(m)(2), and the waiver principles set forth in Section II.A;
- b.** Whether Defendants have produced a privilege log or equivalent particularized written statement of reasons for any claimed exemption, and, if not, the legal effect of that failure under §119.07(1)(f) and Rule 2.420(m)(2) and (e)(1)(B)–(C);
- c.** Whether Defendants have placed competent record evidence before the Court sufficient to create a genuine issue of material fact as to any claimed exemption, the custodian bearing the burden;
- d.** If the Court declines to issue the peremptory writ, the specific material facts found genuinely disputed and the evidentiary record on which any such dispute rests, as required by Rules 1.630(e) and 1.510;
- e.** Whether any confidentiality determination the Court may make satisfies the findings required by Rule 2.420(c)(9)(B)–(C) and Rule 2.420(e)(3)(G), including "no broader than necessary" and "no less restrictive measures," and whether in camera inspection under §119.07(1)(g) is being invoked (and if so, the scope and schedule); and
- f.** Whether the conduct documented in Section IV above and in Exhibit A satisfies the sanctions standard of Rule 2.420(i), Rule 1.380, §119.12, §57.105, and the Court's inherent authority, and, if so, the specific sanctions imposed.
- g.** Any example of when Plaintiff was wrong on the law as Judge Coleman suggested during the recent hearing.

35. To give effect to the "immediate hearing" mandate of §119.11(1) and the expedited disposition contemplated by Rule 2.420(e)(2), Plaintiff requests that, if the Court does not enter the peremptory writ upon consideration of this Motion, the Court enter a written order setting: (i) within seven (7) days, Defendants shall produce a record-by-record identification of all responsive records within their custody, identifying each record by date, author, recipient(s), and general subject matter, together with the specific statutory, constitutional, or rule-based exemption claimed as to each; (ii) within fourteen (14) days of entry of the order, the Court shall conduct in camera inspection of any record as to which an exemption is claimed; and (iii) within twenty-one (21) days of entry of the order, the Court shall enter its ruling on the petition for the peremptory writ.

36. Plaintiff does not seek reconsideration and does not seek to expand the record. Plaintiff seeks a ruling that completes the Court's duties to expedite these proceedings to include a written order identifying the material facts requiring resolution, setting any hearing on those facts, and imposing deadlines consistent with the "immediate hearing" mandate—so that the parties and any reviewing court can understand the basis for the Court's ruling. The sanctions request in Section III is formally preserved for ruling whether or not the Court elects to reach it in the first instance.

WHEREFORE

Plaintiff respectfully requests that the Court:

A. Enter the peremptory writ of mandamus on the existing record, on the ground that Defendants have waived any claimed exemption as a matter of law (Section II.A); that their return is legally insufficient under Rule 1.630(e) (Section II.B); that their refusal to identify forecloses every mechanism of judicial review (Section

II.C); and that a conclusory confidentiality label cannot rebut the Article I, Section 24 presumption of access (Section II.D);

B. In the alternative, strike the Judicial Defendants' unparticularized confidentiality assertion from the record as legally insufficient under Florida Rule of Civil Procedure 1.140(f), applied through Rule 1.630(a) (Section II.E), and thereafter enter the peremptory writ;

C. In the further alternative, impose sanctions under Rule 2.420(i), Rule 1.380, § 119.12, § 57.105, and the Court's inherent authority, in the specific forms identified in Section IV.F above, against the Judicial Defendants and their counsel of record jointly and severally as appropriate for each authority invoked;

D. In the further alternative, enter a written order containing findings addressing the items set forth in Section V subparts a–f above, setting any evidentiary hearing on the specific material facts the Court identifies as genuinely disputed, and imposing the deadlines set forth above; and

E. Grant such further relief as the Court deems just and proper, including reservation of jurisdiction for a subsequent fees hearing under § 119.12 and § 57.105.

Certification/Declaration:

I, Christopher Hanson, both as plaintiff and plaintiff's attorney, and as an officer of the Court, declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge, that the March 18, 2026 email attached as Exhibit A is a true and correct copy of correspondence I sent to Senior Assistant Attorney General Jessica Schwieterman on that date, and that Defendants did not substantively respond to that correspondence.

Certified and executed on April 15, 2026.

/s/Christopher Hanson

Christopher Hanson

cahanson77@yahoo.com

727-409-5738

FL bar #44094

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been filed and served via the Florida Courts E-Filing Portal on this 15 day of April, 2026, to:

Jessica Schwieterman, Esq.

Senior Assistant Attorney General

Office of the Attorney General

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Counsel for Defendant Clerk of Court

/s/ Christopher Hanson

Christopher Hanson, Esq.

Florida Bar No. 44094

Service of Discovery requests for admissions, interrogatories, and requests for production:
Case 25-CA-010255 Hanson V Thirteenth Judicial Circuit, et al. ZOOM LINK FOR 2/5
HEARING

From: cahanson77@yahoo.com (cahanson77@yahoo.com)

To: truthoverchaos@outlook.com; jessica.schwieterman@myfloridalegal.com

Cc: keiana.wilkerson@akerman.com; jason.margolin@akerman.com

Date: Wednesday, March 18, 2026 at 03:33 PM EDT

Dear Jessica,

I had an opportunity to review your initial disclosures in detail. There is still nothing within any of the pleadings from the Attorney General's Office, responses from the 13th Circuit, nor in the initial disclosures, nor any combination of which, that provide any basis for an exemption and continuing concealment of these public records. I should be clear about what I am alleging and what I have alleged for some time now: The State Attorney General's Office is actively working to assist the 13th Circuit in concealing ongoing judicial misconduct and likely the Commission of Financial Crimes for no good faith purpose in these facts. You have 13th circuit actors guilty of what would amount to severe discovery abuses, intentionally concealing and attempting to conceal the concealment, related to a valid request for documents. It's very difficult for me to understand how the Attorney General's Office, Judge Freeman, Judge Coleman, and others can continue to actively assist in preventing necessary accountability. I will continue in my efforts to secure a full investigation into this misconduct.

Your initial disclosures, in addition to being late, are facially insufficient and violative of Rule 1.280.

1. Facial Insufficiency of Witness Disclosures and the Concealment of Testimony: The Defendants' Initial Disclosures fundamentally fail to comply with the strict mandates of the Florida Rules of Civil Procedure. The rule requires that a disclosing party provide not only the name, address, and telephone number of each individual likely to have discoverable information, but also specifically identify the *subjects of that information*. You list four individuals—Chief Judge Christopher C. Sabella, Judge Kelly Ayers, Judge Matthew Felix, and Rick Melindi—but provide only a shared courthouse address for each (Initial Disclosures, p. 1, § A.I-IV). The disclosures completely omit telephone numbers and, fatally, fail to offer a single word describing the likely testimony or the specific subjects of the discoverable information these witnesses possess. Shielding the subject matter of these witnesses' expected testimony is a direct violation of the

rule's plain language and operates as a continuation of the unlawful **"delay, obstruct, and conceal"** mission.

2. The Document Disclosure Logic Trap: The rule further mandates a description by category and location of all documents and electronically stored information the disclosing party has in its possession, custody, or control to support its defenses. Defendants' sole document disclosure is a circular reference to "Public Records that were previously provided to Plaintiff and filed in this case on October 15, 2025, located on the docket as DIN 6" (Initial Disclosures, p. 1, § B.I). This creates a fatal **Logic Trap**: Defendants cannot legally claim that specific statutory exemptions justify their withholding of the April 4th video and the targeted December 13/January 9 emails, while simultaneously disclosing zero internal administrative search logs, IT search queries, or exemption-analysis data and memoranda to support those defenses. By relying exclusively on documents Plaintiff already filed and completely omitting their own internal records, Defendants are utilizing **"selective disclosure as obstruction,"** effectively hiding the administrative trail that would prove the bad-faith handling of the records requests.

3. Demand for Immediate Cure: By submitting bare-bones disclosures that omit the required subjects of testimony and internal documentary evidence, Defendants are attempting to maintain improper concealment of records from public access, violative of the Florida and federal constitutions. I am formally demanding an amended Initial Disclosure that fully complies with the Florida Rules of Civil Procedure by specifying the exact subjects of each witness's likely testimony and categorizing the internal administrative records they intend to use to support their defenses.

Certainly, given the listed witnesses and failure to specify testimony to be offered, I need to take the depositions of all of the individuals on that list. Please let me know if you will cooperate in scheduling the depositions for your listed witness for the first available dates. I'd like to set aside at least 1 hour for each disposition with at least an hour between depositions if they are to be scheduled the same day. I will take the first hour you have on your calendar and do them one at a time to make sure we are completing them in a timely fashion.

Regarding your request for authority supporting discovery in these proceedings, you formally initiated discovery in this matter by requesting my initial disclosures. You cannot, in good faith, now take the opposite position. Further, Florida Rule of Civil Procedure 1.630(a) explicitly states that actions for the issuance of writs of mandamus are civil actions governed by the Florida Rules of Civil Procedure. Because mandamus is an original civil action, the broad discovery rights afforded to all litigants under Rule 1.280 apply. There is no statutory carve-out exempting Rule 2.420 mandamus defendants from this discovery.

While public records proceedings are designed to be summary and expedited, the Respondents and the Sixth Circuit have actively, intentionally, and unlawfully delayed an expedited timeline in this case. The State cannot stretch this into a protracted litigation to delay records access while simultaneously invoking the "expedited" nature of the rules as a shield against standard civil discovery.

Furthermore, your Initial Disclosures are entirely devoid of any factual assertions, legal defenses, or specific claims of exemption that could conceivably support a defense to production. Responsive documents were identified by your client. There seems to be no support whatsoever for Defendants withholding the "security" video. What is the basis for continuing to withhold these materials from public access? Where is the evidence of the security exemption? You have not produced a privilege log, nor have you articulated a single substantiated reason for withholding the remaining communications and hearing videos.

Without any pled facts or exemptions to justify this withholding, the Office of the Attorney General is engaged in naked obstruction. You are intentionally delaying access to public records to shield the 13th Circuit from accountability for the very misconduct that continues to severely harm my family and me as a litigant in that circuit. To make matters even worse, I pleaded with the Attorney General's Office on multiple occasions to investigate this exact systemic corruption. Instead of investigating the documented abuses, the Attorney General is now deploying its resources to protect the perpetrators from transparency and constitutional mandates.

I am reiterating my formal request for dates to schedule depositions and to obtain formal responses to the attached discovery requests. Please provide three available dates in late March or early April 2026 for the depositions of Judge Kelly Ayers, Dwuuna Heyward, Scott Davis, and Vivian Hodz, as well as a designated representative with knowledge of the 13th Circuit's security and camera systems. If I do not receive available dates from you by close of business on Friday, March 13, 2026, I will unilaterally notice these depositions.

On a side note, you will also find correspondence related to my requests for public records sent to the Florida AG's office over a month ago. I have heard nothing back. The need for state actors to conceal records reflects the scope of corruption and misconduct plaguing the system. This is not a problem that will go away. Anyone that supports these obvious and intentional state actions violative of the constitutional mandate for transparency and my family's constitutional rights, reveal him/herself as complicit in this very serious ethical and constitutional crisis, to this point, still expanding in the Florida Courts and beyond.

I continue to request a conference with the state attorney general himself and/or with someone in leadership within the AG's office. Please let me know if you will comply with any of the above.

Regards,

Christopher A. Hanson, Esq. Florida Bar No. 44094

727-409-5738

On Tuesday, March 10, 2026 at 04:40:56 PM EDT, Jessica Schwieterman
<jessica.schwieterman@myfloridalegal.com> wrote:

Please see the attached initial disclosures.



Jessica Schwieterman
Senior Assistant Attorney General
Civil Litigation Central

OFFICE OF ATTORNEY GENERAL JAMES UTHMEIER
3507 E. Frontage Road., Suite 200 | Tampa, FL 33607
Office: (813) 233-2880 ext. 4564
E-mail: Jessica.Schwieterman@myfloridalegal.com

From: cahanson77@yahoo.com <cahanson77@yahoo.com>

Sent: Tuesday, March 3, 2026 3:17 PM

To: Jessica Schwieterman <Jessica.Schwieterman@myfloridalegal.com>; Christopher Hanson
<truthoverchaos@outlook.com>

Cc: keiana.wilkerson@akerman.com; jason.margolin@akerman.com

Subject: Re: Case 25-CA-010255 Hanson V Thirteenth Judicial Circuit, et al. ZOOM LINK FOR 2/5
HEARING

Dear Ms. Schwieterman:

I hope this email finds you well.

On January 20, 2026, you indicated that you would be happy to move on to
discovery once my initial disclosures were provided. On February 17, 2026, I
forwarded my remaining initial disclosures, including the witness list and exhibit list.
Pursuant to Florida Rule of Civil Procedure 1.280 and the recent amendments
requiring initial disclosures, your initial disclosures are now late. Accordingly, please
provide the Defendants' initial disclosures by the end of the week to avoid a
motion. It is important that I get those in a timely fashion as there are so many
unanswered questions in the case.

|

The continued delay in discovery is having a direct and ongoing detrimental impact on the stability and well-being of my minor children given the parallel dissolution-of-marriage proceedings (Hanson v. Hanson, 13th Circuit Case No. 24-DR-001150), where these concealed records and the underlying judicial conduct overlap significantly. Timely production is therefore critical not only to this action but to protecting my children's best interests, including shielding them from a judge who is in a position to suppress evidence to protect himself and other from accountability from severe misconduct.

|

I do not understand the 13th Circuit's basis for continuing to conceal documents relating to the December 13th, 2024, and January 9th, 2025 hearings. Given the confirmation that responsive records exist in relation to those hearings and the unrefuted allegations of intentional concealment with bait and switch and document dumping of irrelevant and unrequested records, it's difficult to understand how the Attorney General's office can continue to support concealment of those documents from Public Access. Unless I'm missing something, it's a direct, intentional, and ongoing violation of my constitutional rights.

I am not seeking any damages so judicial immunity does not apply. Please let me know the basis for continuing to conceal those records or provide them immediately. If there are "mental impressions" in Public records, they are still public records. That is especially so given the failure to produce a privilege log and the bad faith tactics used so far to conceal them. Hopefully the initial disclosures will provide me some understanding of the defendant's position

Additionally, with respect to the security footage (the only record for which an exemption has been asserted), I object to hearsay and authentication of any purported grounds and reserve additional objections for if and when any documentation is ever provided. To date, I have nothing providing any substantiation for the vague "security" objections. Please immediately provide any documents or evidence you have supporting that assertion that the video Judge Ayers offered on the records on 4-4-26 is strictly part of a protected security system. Further, please let me know if anyone has watched the video and/or performed any analysis on the public interest in the record outweighing the alleged security concern, especially with

ways to limit that aspect of the problem.

As I've requested multiple times, I would also like to schedule depositions, beginning with Judge Kelly Ayers and her judicial assistant, Ms. Heyward, as previously discussed, attorneys Scott Davis, and Attorney Vivian Hodz, and a member of security personnel with knowledge of the camera systems and the video at issue. Please provide several dates of availability during March and April 2026.

I also want to reiterate my concerns about the constitutionality of the Attorney General's involvement. I'm continuing to request both as a citizen and as a litigant the opportunity to speak with the Attorney General of Florida himself or some regional or area director with supervisory authority over the Office's involvement in this case. Please let me know if you are simply refusing to pass along that message or if there is anything you can do to help make that happen.

Please confirm receipt and provide the requested production or dates by close of business on **March 10, 2026**.

Thank you for your prompt attention.

Best regards,

Christopher A. Hanson, Esq.

Florida Bar No. 44094

cahanson77@yahoo.com (<mailto:cahanson77@yahoo.com>)

727-409-5738

On Tuesday, February 17, 2026 at 11:10:06 AM EST, cahanson77@yahoo.com <cahanson77@yahoo.com> wrote:

Hi Jessica - here's a link to the remaining initial disclosures documents. [initial disclosures](#) I thought this went over a few days ago, but I don't see the email here at the moment. There is a list of the anticipated exhibits and then witnesses. I'm not convinced that this provision applies to public records writs, but here you go either way. if you think anything is lacking on initial disclosure compliance, please let me know ASAP. Please send over your initial disclosures.

Again, I think the Judges in the 6th Circuit are intentionally violating my constitutional rights in efforts to assist the 13th Circuit to delay or even avoid consequences. I'm shocked the attorney general's office is simply ok with supporting intentional constitutional violations like this.

The 13th Circuit has still not provided any additional records they've confirmed they have. These records are critical to cases in active litigation. It's really disheartening that multiple circuit court judges and the attorney general's office simply support this corruption as it continues to damage my family. These are simple objective facts that are happening on your watch. Pretending that this isn't happening violates the core mission of attorneys and judges - to find the truth and ensure justice. Florida really has turned the corner to prioritize protect the elite ruling class regardless of what their corruption does to commoners. I still haven't heard or seen anything that begins to poke holes in this very basic and concerning story of this litigation.

I continue to request that the attorney general's office begin to investigate the violations and corruption in the 13th Circuit instead of defending it. I have a few filings in the works, but efficiency remains my goal. I had reached out to the attorney general's office multiple times for help with the corruption in the 13th Circuit. What happened with those complaints? How is that not a conflict of interest with the AG's office current status defending that very same circuit. Was there an investigation where the 13th Circuit was cleared? Or is the AG office simply choosing to believe the elite ruling class members over the commoner despite all of the evidence supporting the commoner's position?

Please let me know if you have any answers to these concerns and on dates for the depositions. I'd like to start by getting Judge Ayers and her JA, Ms. Heyward. Please let me know your first available date to get those on the calendar. We also need dates for another hearing based on something I filed last night. I'll send that to you and the judge separately.

Again, please be sure to provide complete initial disclosures no later than March 6, 2026 to avoid a motion including a separate request for fees and costs.

Thank you.

Chris Hanson
FL Bar #44094

On Thursday, February 5, 2026 at 03:31:58 PM EST, Jessica Schwieterman
<jessica.schwieterman@myfloridalegal.com> wrote:

Thank you,

I will attend in person.



Jessica Schwieterman
Senior Assistant Attorney General
Civil Litigation Central

OFFICE OF ATTORNEY GENERAL JAMES UTHMEIER

3507 E. Frontage Road., Suite 200 | Tampa, FL 33607

Office: (813) 233-2880 ext. 4564

E-mail: Jessica.Schwieterman@myfloridalegal.com

From: Section6 <section6@jud6.org>

Sent: Thursday, February 5, 2026 3:30 PM

To: Jessica Schwieterman <Jessica.Schwieterman@myfloridalegal.com>;
jason.margolin@akerman.com; keiana.wilkerson@akerman.com; cahanson77@yahoo.com

Subject: Case 25-CA-010255 Hanson V Thirteenth Judicial Circuit, et al. ZOOM LINK FOR 2/5 HEARING

Good afternoon,

In an abundance of caution, Judge Coleman wanted me to send a separate email just relaying again that he is permitting zoom appearance for tomorrow's hearing. Below is the zoom link. Let us know if there are any questions.

<https://zoom.us/j/91614250159?pwd=bq1kxRdbRkkHfXb3QXn2VT0Uhdbagf.1&from=addon>

Meeting ID: 916 1425 0159

Passcode: 154093

Have a good evening,

Nichelle Ramsay, Judicial Assistant

Judge Sherwood Coleman, UFC-Section 6 | Sixth Judicial Circuit

Pinellas County Justice Center

14250 49th Street North, Annex Bldg., Suite J3.210

Clearwater, FL 33762

727-464-6137 office

nramsay@jud6.org and section6@jud6.org

[Judge Coleman's Practice Preferences](#)

Please note that Florida has a very broad public records law. Most written communications to or from state officials regarding state business are considered public records. Your e-mail message may be subject to public disclosure upon request.



combined RFA ROGS and RTP to defendants 13th Circuit.pdf
89.5 KB



3-13-26 email to AGs office.pdf
659.6 KB



combined RFA ROGS and RTP to defendants 13th Circuit.pdf
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3-13-26 email to AGs office.pdf
659.6 KB

CHRISTOPHER HANSON, ESQ.

Florida Bar No. 44094

cahanson77@yahoo.com (mailto:cahanson77@yahoo.com)

727-409-5738

Senior Assistant Attorney General

Office of the Attorney General

3507 E. Frontage Road, Suite 200

Tampa, FL 33607

Jessica.Schwieterman@myfloridalegal.com

Sent via email to Jessica.Schwieterman@myfloridalegal.com

4-15-26

Re: Hanson v. Thirteenth Judicial Circuit Court, et al.

Case No.: 25-CA-010255 (Div. B)

NOTICE PURSUANT TO FLA. STAT. § 57.105

Dear Ms. Schwieterman:

This letter constitutes formal notice under Florida Statute § 57.105 that the confidentiality claims you have asserted and continue to maintain on behalf of the Judicial Defendants are not supported by material facts or existing law and cannot be supported by any good-faith argument for the extension, modification, or reversal of existing law.

The Judicial Defendants have asserted that the April 4, 2025 hearing video (and other responsive records) are exempt without ever identifying any specific record, without filing the required “Motion to Determine Confidentiality of Court Records” under Florida Rule of Judicial Administration 2.420(e)(1), without providing any particularized written statement of reasons under § 119.07(1)(f) or Rule 2.420(m)(2), and without any competent evidence supporting the singular claimed, “security” exemption.

As a result, any claimed exemptions have been waived as a matter of law. (See Plaintiff’s Motion for Sanctions and Entry of Peremptory Writ, filed April 2026.)

DEMAND

Pursuant to § 57.105(4), you are given twenty-one (21) days from the date of this letter to cure this violation by immediately producing to Plaintiff all responsive records that have been withheld—including the complete, unredacted April 4, 2025 hearing video—without any confidentiality redactions or further delay. I continue to pursue attorney’s fees and costs under § 57.105, § 119.12, Rule 2.420(i), and Rule 1.380, and any other sanctions the Court deems appropriate.

Sincerely,

/s/ Christopher Hanson

Christopher Hanson, Esq.

Florida Bar No. 44094

Plaintiff and Counsel for Plaintiff